NASHCRYSTAL MOTORS (PRIVATE) LIMITED
versus
TOTAL ZIMBABWE (PRIVATE) LIMITED
and
B.H DRURY
and
DRAWCARD ENTERPRISES (PRIVATE) LIMITED
and
REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWWE
MUZENDA J
MUTARE, 2 and 9th March 2026

Reasons for Judgment

Advocate *B. Mudhau* for the plaintiff
Mr. *B. S Ziwa*, for the 1st defendant

MUZENDA J:

1. This case is a classical example of a legal merry-go-around moving from High Court Mutare to the Supreme Court, the Supreme Court after hearing the appeal kicks the case back to the trial judge on a specific area for re-determination, the judge decides on that specified area and a new ground of appeal arises and the aggrieved party tee-toes back to the Supreme Court and the superior court avoids to make a conclusive decision and reboots the ball back to Mutare field and the judge is seized with a matter totally not pleaded by the aggrieved litigant on the basis that it is a point of law and can be raised in closing submissions. How does a judge deal with such a case? Does it allow re-opening of pleadings or does it call for submissions on how to proceed? Is it a trial *de novo* or the court can allow only submissions addressing the contents of the superior court's directives?
2. This is the catch 22 situation which I faced in this remitted case. Like the first remittal under SC 81/24. The dilemma was the same and thought may be there was an error but when it re-surfaced, it created a real challenge. Parties fortunately agreed that the matter

could be determined on the strength of the papers filed of record, and that is how I am going to approach the matter at hand.

3. Under SC 686/25 the Supreme Court remitted the matter to this court to determine two issues:

   3.1.The prescription of the claim of refund of USD 80 000 and

   3.2.The effect of SI 33 of 2019 on the claimed refund of USD80 0000.

4. **Plaintiff's Submissions**

   4.1.Advocate *Mudhau* submitted that the Supreme Court directed this court to make a determination on the alternative claim for the refund of USD 80 000, whether it has prescribed, to the plaintiff the alternative claim of USD$80 000 has not prescribed. Counsel for plaintiff urged the court to distinguish a special plea of prescription to the main claim for transfer of property which the Supreme Court resolved under SC 81/24 and the alternative claim for a refund. In plaintiff's view prior to March 2018 the first defendant had not been placed in *mora* in relation to the alternative claim of the refund of the purchase price and directed this court to the matter of *Jennifer Van Brooker* v *Mudhanda & Ors* SC 5/18. It added that first defendant was only placed *in mora* in 2018. Plaintiff emphasised that the date which a debt arises is not necessarily the date on which a debt becomes due and referred the court to the case of *Syfin Holdings Ltd* v *Pickering* 1998 (1) ZLR 19 at pp 19-20 and summed up its submission by stating that plaintiff's alternative claim has not prescribed.

   4.2.First defendant submitted that the plaintiff's alternative claim for refund of the purchase price should suffer the same fate as the main claim on the aspect of prescription. The Supreme Court under SC81/24 declared that taking into account years 2009 stretching to 2011 plaintiff's claim had since been prescribed, it is well in excess of three years. First defendant added that it is not the position of the law that the cause of action arose in 2018 when plaintiff placed first defendant *in mora*. It was the submission of the first defendant that plaintiff's legal practitioners threatened to sue first defendant for damages for cancellation of 29 September 2010 and to the first defendant the cause of action arose in November 2009, not 2018. It was further submitted on behalf of first

defendant that "refund of the purchase price" is equally governed by s 15(d) of the Prescription Act which provides 3 years as the prescriptive period and by the date plaintiff issued summons in June 2018 its claim had prescribed and first defendant urged the court to uphold first defendant's point *in limine* and dismiss the plaintiff's alternative claim with costs.

5. **The Law**

5.1. Both sides relied on identical case law but it was the interpretation that differed. In the matter of *Van Brooker* v *Mudhanda & Another* (*supra*) it was held:

"*In order to determine the question of prescription, the court first had to make a finding on the cause of action upon which the respondent's claim was premised and when specifically, the cause of action arose.*"

5.2. In the case of *Kanjere* v *Old Mutual Life Assurance Company Ltd* SC 31/24 it was held:

"*It can be construed from case law that once the cause of action which is the entire set of facts entitling one to make a claim, is established, and it is ascertained when the cause of action arose, the court can safely determine whether or not the debt has prescribed.*"

6. **Applying the law to the facts**

6.1. During hearing of the matter, it was agreed by the parties that if prescription is upheld the issue of the effect of SI 33 of 2019 becomes moot. However, if it is dismissed this court will then decide on the effect of SI 33 of 2019 on the USD80 000 refund.

6.2. Judged from the pleadings and correspondences filed of record it appears to this court that the cause of action arose in November 2009 when plaintiff was told that the business arrangement had collapsed and that USD$ 61 000 had been deposited with plaintiff's legal practitioners. It would be weird in my view to separate prescription of the main claim from the alternative claim. I came to that conclusion because it was not fortuitous for plaintiff to sue first defendant for specific performance and at the same time claiming alternative of USD 80 000.

6.3. Plaintiff has been anchoring its claim on an acknowledgment of debt deduced from letters/emails received from the first defendant which acknowledgment of liability has since been declared by the Supreme Court in case No. SC81/24 as of no effect on prescription. In the current matter before me, plaintiff has now introduced a new footing

to the effect that a debt arises after a debt or has been placed *in mora*. I am not persuaded by the plaintiff on that aspect. Plaintiff claimed specific performance and in the alternative damages for breach and refund of the purchase price. One interesting feature of this claim is that refund was rejected by the plaintiff to compel first and second defendant to keep the purchase price and pass ownership.

6.4. In the case of *Drawcard Enterprises (Private) Limited* v *Nashcrystal Motors (Private) Limited & Ors* SC 81/24 at p 32 of the cyclostyled judgment it was clearly ruled that:

"*In any event, the running of prescription can only be interrupted judicially or otherwise during the period it is deemed to be running. Thus, as in this case where the prescription period is 3 years, prescription can only be interrupted during that period. After the lapse of that period, prescription will have run its full course, and no interruption can arise. The horse will have bolted. Any such admission of liability outside the prescription period forms a new and different cause of action, subject to its own period of prescription. However, as already pointed out, no such acknowledgment of liability occurred at all*."

6.5. I am therefore satisfied that the special plea of prescription was well taken and has merit. From November 2009. Plaintiff did not claim alternative relief from first defendant on the refund of USD 80 000. At the time of issuing summons in 2018 plaintiff's claim had prescribed. In any case looking at the SI 33 of 2019's effects on amounts of money held in trust by lawyers in Zimbabwe the current amount to claim for refund would have been ZWL 80 000 and not USD 80 000. This is purely in line with the whole new regime brought by SI 33 of 2019 where each US dollar was equivalent to one Zimbabwean currency tender. As said earlier on in this judgment this issue becomes moot if the special plea of prescription is up held.

6.6. Accordingly, the following order is returned:

"*First Respondent's special plea of prescription is upheld, and Plaintiff's alternative claim of US$ 80 000 being refund of this purchase price is dismissed with costs.*"